

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 18, 2026, AT 8:30 A.M.

6. M-CV-0096406 AJIT KUMAR, TRUSTEE v. MENDOZA, LAWRENCE

This tentative ruling is issued by the **Honorable Michael A. Jacques**. If oral argument is requested, it shall be heard on June 18, 2026, at 8:30 a.m. in Department 40.

Defendant's Motion to Set Aside Judgment, Recall or Quash Writ of Possession, and Reset Trial Date

Defendant moves to set aside the judgment entered against him on May 19, 2026, after he did not appear for the court trial. Code of Civil Procedure section 473, subdivision (b) provides "the court may . . . relieve a party . . . from a judgment . . . taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) Defendant, as the moving party, bears the burden to show good cause entitling him to relief. (*Davis v. Thayer* (1980) 113 Cal.App.3d 892, 904.)

Here, defendant has not met his burden. Defendant's declaration does not establish he exercised reasonable diligence, explain whether his medical conditions were severe enough to limit his ability to check his mail or attend and participate at trial or that all of his time was devoted to his personal and familial affairs that he was not able to check his mail or attend and participate at trial.

Accordingly, defendant's motion is denied.

7. M-CV-96410 LHE WOODCREEK v. TORRANCE, DEBORAH

The demurrer is continued to **June 25, 2026, at 8:30 a.m. in Department 3.**

8. S-CV-0040220 MURPHY, ANNA v. SMITH, CHARLEY

Defendant's Motion for Writ of Possession for Real Property Located at 6010 and 6020 McCourtney Road, Lincoln, CA

Defendant moves for the court to issue a writ of possession for real property pursuant to Code of Civil Procedure section 715.010.

Code of Civil Procedure section 715.010, subdivision (a) provides: "A judgment for possession of real property may be enforced by a writ of possession of real property issued pursuant to Section 712.010." (Code Civ. Proc., § 715.010, subd. (a).) Here,

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defendant does not establish the court entered a judgment for possession of real property. Nor has a review of the court record revealed such a judgment.

Accordingly, defendant's motion is denied.

Plaintiff's request for sanctions is denied.

Plaintiff's Assertion of Statutory Right of Redemption and Declared Homestead Rights

Preliminary Matters

Plaintiff's request for judicial notice is granted.

Ruling on Motion

Plaintiff argues the statutory right of redemption has not passed because it runs from one year from the date of the sale rather than three months.

Code of Civil Procedure section 720.030 provides the two-track deadline for the redemption period: "(a) Three months after the date of sale if the proceeds of the sale are sufficient to satisfy the secured indebtedness with interest and costs of action and of sale. (b) One year after the date of sale if the proceeds of the sale are not sufficient to satisfy the secured indebtedness with interest and costs of action and of sale." (Code Civ. Proc., § 720.030, subds. (a)–(b).)

Here, the sale of the property occurred on November 13, 2025. Plaintiff, in her motion, concedes the sale produced surplus funds from the amount on the writ of sale. Therefore, the sale proceeds sufficiently satisfied the secured indebtedness with interest and costs of action and of sale such that the redemption period is three months from the sale of the property. In other words, the redemption period ended on February 13, 2026.

Plaintiff also argues she is entitled to the surplus funds pursuant to Code of Civil Procedure section 704.850. However, that section only applies if the homestead exemption applies. The court explicitly found the homestead exemption does apply on April 28, 2025. Nor does the attached accounting from plaintiff's federal case state the homestead exemption applies.

Accordingly, plaintiff's motion is denied in its entirety.